

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 563 By: Haste of the Senate
3 and
4 Staires of the House
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7 An Act relating to county employee leave; authorizing
8 board of county commissioners to develop certain
9 policy; allowing county employees to use certain
10 leave to serve as certain election officials;
11 providing for codification; and providing an
12 effective date.
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15 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
16 and insert:
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18 "An Act relating to the county planning commission; amending 19 O.S.
19 2021, Section 868.2, which relates to the personnel of the county
20 planning commission; establishing that the chair of the board of
21 county commissioners or their designee shall be a member of the
22 county planning commission; providing process for appointing
23 remaining members; establishing terms of two years; amending 19 O.S.
24 2021, Section 868.3, which relates to personnel and procedure of the
county board of adjustment; requiring the county board of adjustment
to be composed of three, five, or seven appointed resident property
owners of the county; providing process for the appointment of
members; establishing terms of members; permitting the board of
county commissioners to retain private legal counsel to represent
and advise the county board of adjustment; clarifying certain

1 actions adopted or enacted pursuant to certain provisions shall
2 remain in full force until amended, revised, or replaced; providing
3 for codification; and declaring an emergency.

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5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. AMENDATORY 19 O.S. 2021, Section 868.2, is
7 amended to read as follows:

8 Section 868.2. The county planning commission shall be composed
9 of seven (7) members to be appointed by the board of county
10 commissioners. One member shall be ~~a member~~ the chair of the board
11 of county commissioners or their designee and the remaining six
12 members shall be ~~residents of the unincorporated areas of the county~~
13 appointed by the board of county commissioners, with each county
14 commissioner nominating two members. Each such nominee shall reside
15 within the district represented by the county commissioner making
16 the nomination. The term of the chair of the county commissioner
17 ~~member~~ or their designee shall be coextensive with ~~his~~ their term ~~of~~
18 ~~official office~~ in that position, and all other members shall be
19 appointed for terms of ~~six (6)~~ two (2) years, except that such terms
20 shall be made overlapping and the respective terms of those first
21 appointed may be less than ~~six (6)~~ two (2) years. All members shall
22 serve as such without compensation. Members may be removed by the
23 board of county commissioners for cause after a public hearing held
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1 for that purpose and vacancies shall be filled by additional
2 appointments.

3 SECTION 2. AMENDATORY 19 O.S. 2021, Section 868.3, is
4 amended to read as follows:

5 Section 868.3. A. The county board of adjustment shall be
6 composed of three (3), five (5), or seven (7) resident property
7 owners of the county to be appointed by the board of county
8 commissioners. ~~At least one member shall be a resident of the~~
9 ~~county seat of such county and at least one member shall be duly~~
10 ~~licensed as an attorney in the State of Oklahoma.~~ Members shall be
11 nominated by the county commissioners in as nearly equal number as
12 practicable, and when the total number of authorized positions
13 cannot be divided equally among the three county commissioners, the
14 remaining nomination or nominations shall be allocated by the board
15 of county commissioners.

16 B. The term of each member shall be ~~three (3)~~ two (2) years
17 except that the terms shall be overlapping and the ~~membership of the~~
18 ~~board first appointed shall be for terms of one (1), two (2) and~~
19 ~~three (3) years, respectively~~ respective terms of those first
20 appointed may be less than two (2) years. The board of county
21 commissioners is hereby authorized to fill vacancies which may occur
22 in the board and to appoint a substitute or substitutes to serve in
23 a particular case in which a member or members shall certify ~~his~~
24 their disqualification. Members may be removed by the board of

1 county commissioners for cause after a public hearing held for that
2 purpose, and vacancies shall be filled by additional appointments.
3 All members of the county board of adjustment shall serve as such
4 without compensation.

5 C. The board of county commissioners may retain private legal
6 counsel to represent and advise the county board of adjustment in
7 the performance of its official duties.

8 D. The county board of adjustment shall elect its own chairman
9 and shall adopt rules of procedure consistent with the provisions of
10 the zoning regulations and the provisions of this act. The
11 chairman, or in his absence the acting chairman, may administer
12 oaths and compel the attendance of witnesses. All hearings of the
13 county board of adjustment shall be open to the public, and minutes
14 shall be kept of all proceedings and official actions, which minutes
15 shall be filed in the office of the board and shall be a public
16 record. The board of adjustment shall fix a reasonable time for the
17 hearing of any appeal and every appeal shall be heard within sixty
18 (60) days from the date of filing.

19 E. Notice of hearings before the county board of adjustment
20 shall be given by at least one (1) publication in a newspaper of
21 general circulation in the county and by mail to the record owners
22 of lands contiguous to the affected area at least fifteen (15) days
23 prior to the date of such hearing.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 868.23 of Title 19, unless there
3 is created a duplication in numbering, reads as follows:

4 On and after the date a county becomes subject to Sections 868.1
5 et seq. of Title 19 of the Oklahoma Statutes, all comprehensive
6 plans, master plans, zoning regulations, floodplain regulations,
7 subdivision regulations, resolutions, ordinances, codes, and all
8 amendments, supplements, and modifications thereto, previously
9 adopted or enacted pursuant to any other provision of Section 863.1
10 through Section 869.7 of Title 19 of the Oklahoma Statutes, and all
11 actions taken thereunder, are hereby validated, ratified, and
12 continued in full force and effect as if adopted under the authority
13 of Sections 868.1 et seq. of Title 19 of the Oklahoma Statutes,
14 until amended, revised, or replaced by appropriate official action
15 taken in accordance with such sections.

16 SECTION 4. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval."
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1 Passed the House of Representatives the 4th day of May, 2026.

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4 Presiding Officer of the House of
Representatives
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6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 563

By: Haste of the Senate

3 and

4 Staires of the House

5
6 An Act relating to county employee leave; authorizing
7 board of county commissioners to develop certain
8 policy; allowing county employees to use certain
9 leave to serve as certain election officials;
10 providing for codification; and providing an
11 effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 180.91 of Title 19, unless there
15 is created a duplication in numbering, reads as follows:

16 The board of county commissioners may develop a policy in
17 accordance with the secretary of the county election board to
18 authorize county employees to receive up to three (3) working days'
19 paid administrative leave per calendar year for the purpose of
20 serving as a precinct official pursuant to Section 2-124 of Title 26
21 of the Oklahoma Statutes, absentee voting board member pursuant to
22 Section 14-115.5 of Title 26 of the Oklahoma Statutes, or other
23 election worker authorized by law, if the employee is qualified to
24 serve in such position.

SECTION 6. This act shall become effective November 1, 2025.

Passed the Senate the 11th day of March, 2025.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2025.

Presiding Officer of the House
of Representatives